

25STCV10453 25STCV10453

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C508%2C08%2F07%2F2026

Source SHA-256: 6acca7154d6f5f40dd1d371bc427b1e97d665662f630338080d065b6cfa441e3

Case Number: 25STCV10453 Hearing Date: August 7, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

NOAH GEBRESELESIE,

Plaintiff,

vs.

LOBLAW COMPANIES LIMITED,

Defendant.

Case No.:

25STCV10453

Hearing Date:

August 7, 2026

Hearing Time:

10:00

a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION

TO VACATE ORDER GRANTING MOTION TO QUASH SERVICE OF SUMMONS AND AMENDED COMPLAINT (CCP § 473(b))

Background

Plaintiff Noah Gebreselesie ("Plaintiff"), in pro per, filed this action on April 8, 2025 against Defendant Loblaw Companies Limited ("Defendant"), alleging four causes of action for (1) defamation per se, (2) fraudulent misrepresentation, (3) intentional infliction of emotional distress, and (4) discrimination.

On May 12, 2025, Defendant filed a Motion to Quash Service of Summons and Complaint, or alternatively, Motion to Dismiss or Stay Action based upon Forum Non Conveniens. The Court granted Defendant's motion on August 13, 2025.

On September 2, 2025, Plaintiff filed a first amended complaint ("FAC") against Defendant. The FAC only alleged one cause of action for defamation per se. Plaintiff alleges that Defendant defamed him "through filings in the Ontario Superior Court of Justice on December 4, 2024, and April 30, 2025, falsely labeling him a 'paper terrorist' and 'vexatious litigant' and wrongfully attributing lawsuits filed by a corporation to him personally." (FAC, ¶ 1.)

On September 17, 2025, Defendant filed a Motion to Quash Service of Summons and Amended Complaint, or alternatively, Motion to Dismiss or Stay Action based upon Forum Non Conveniens. The Court granted Defendant's motion and dismissed the action pursuant to Code of Civil Procedure section 581, subdivision (l).

Thereafter, Plaintiff filed a motion to vacate the Court's Order granting Defendant's motion to quash service for fraud. On March 4, 2026, the Court denied the motion and "reaffirm[ed] dismissal of the instant action." (Order 3/4/26, 4:23-24.)

Plaintiff now moves to “vacat[e] the November 5, 2025 Order granting Defendant’s Motion to Quash Service of Summons and Amended Complaint (‘Quash Order’).” (Notice of Mot., 2:9-12.) Defendant opposes. Plaintiff replied.

Evidentiary Objections

The Court rules on Defendant’s objections as follows:

Objection Nos. 1, 2, 3, 4, 5, 6: sustained

Plaintiff also filed objections. However, Plaintiff objects to Defendant’s opposition as untimely. Plaintiff explains that Defendant emailed the opposition, but did not attach the file, so Plaintiff did not receive the opposition until the next day, one day late. The Court notes that Defendant timely filed the opposition with the Court. Additionally, because Plaintiff received the opposition only one day late and still filed a reply, it does not appear Plaintiff was prejudiced by the delay. Accordingly, the Court declines to strike or disregard the opposition.

Discussion

Plaintiff moves to vacate the Court’s Order granting the motion to quash service. Plaintiff moves under Code of Civil Procedure section 473, subdivision (b), which provides in pertinent part as follows:

“The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.”

Plaintiff previously moved to vacate the same order under Code of Civil Procedure section 473, subdivision (d), based on fraud. Plaintiff asserts that “[t]he March 4,

2026 denial addressed only a clerical typo issue; this motion addresses the underlying misrepresentation.” (Mot., 8:1-2.)

Plaintiff asserts that “[t]his motion is based on excusable neglect: Plaintiff’s reasonable reliance on Defendant’s sworn declaration falsely claiming “no physical presence, office, agents, or employees in California,” which prevented a full rebuttal despite diligent opposition, including Plaintiff’s February 24, 2026 reply requesting limited jurisdictional discovery as alternative relief. Newly surfaced public evidence contradicts the claim and establishes purposeful availment. This motion is timely filed within six months of the November 5, 2025 Order.” (Notice of Mot., 2:15-3:6.) Plaintiff asserts he “reasonably relied on the May 12, 2025 sworn declaration of Sarah Chesworth. Made under penalty of perjury, the declaration prevented Plaintiff from fully rebutting jurisdictional claims. Plaintiff acted diligently. The February 24, 2026 reply included a request for limited jurisdictional discovery concerning T&T’s ownership, hiring, and operations as alternative relief. New evidence surfaced after the denial of Plaintiff’s prior motion, including: The Brea office, operational in 2024[.] Irvine and Chino Hills expansion announcements in 2025[.] These facts directly contradict Defendant’s ‘no presence’ claim. The February 19, 2026 declaration repeating the same assertion demonstrates a continuing pattern.” (Mot., 7:1-17.)

Plaintiff also presents what appears to be evidence of Defendant’s connections to California; however, Plaintiff does not authenticate this evidence with a declaration, exhibits, or an explanation of how the information was obtained. Accordingly, the Court sustained Defendant’s evidentiary objections to the evidence. Plaintiff does not present the Court with admissible evidence demonstrating excusable neglect.

Additionally, Defendant’s opposition asserts that “[e]ven if Plaintiff’s neglect was excusable, his ‘newly surfaced public evidence,’ none of which is admissible, does not establish that this Court has jurisdiction over Defendant nor does it contradict Chesworth’s prior testimony.” (Opp., 9:25-27.) In support of Defendant’s opposition, Defendant provides a declaration explaining that “T&T Supermarket Inc. (‘T&T Canada’) is a Canadian corporation with no physical presence or office in the State of California. T&T Canada is a subsidiary of Defendant through another subsidiary of Defendant.” (Bunston Decl., ¶ 6.) Whereas “T&T Supermarket US Inc. (‘T&T US’) is a Delaware corporation. T&T US is wholly owned

subsidiary of T&T US Holdings, a United States Canadian holding company. T&T US is the operating entity to T&T US's corporate headquarters at 975 West Imperial Highway, Suite 250 Brea, CA 92821 and to all T&T Supermarket locations in the United States, including the two locations in Irvine and Chino Hills referenced by Plaintiff in his Second Motion to Vacate." (Id. at ¶ 8.) Further, "T&T US has no business dealings or contractual relationships with Plaintiff, nor has it ever engaged the Plaintiff in any business capacity, nor has it had any interaction with him within the State of California or elsewhere." (Id. at ¶ 9.) "Defendant and T&T US Holdings are different holding companies. Defendant and T&T US Holdings have different ownership structures and have no complete unity of interests or ownership." (Id. at ¶ 11.) Defendant asserts that "Plaintiff has not established any agency theory that ties Defendant to any California-affiliated subsidiary for purposes of jurisdiction in this state." (Opp., 13:14-15.)

Plaintiff includes a declaration in support of his reply, which directly addresses Defendant's declaration. Plaintiff declares that "Mr. Bunston's Declaration attaches no ownership chart, no stock ledger, no intercompany agreement, no board minutes, and no other documentary support for the claim that T&T US Holdings severs any jurisdictional connection. The Declaration consists solely of Mr. Bunston's unsupported assertions." (Gebreselesie Decl., ¶ 8.) Plaintiff further states that "I reasonably relied on Defendant's earlier sworn declarations (including those of Sarah Chesworth) that repeatedly stated Loblaw had 'no physical presence, office, agents, or employees in the State of California.' A reasonably prudent person reading those statements under penalty of perjury would have done the same. When Loblaw's own public materials revealed the contradiction, I moved promptly." (Id. at ¶ 10.) Plaintiff further states that "[a]ll of the facts set forth above concerning Loblaw's Leadership page, Tina Lee's position, the Brea headquarters, the California store announcements, and the investor materials are taken directly from Loblaw's own publicly available corporate website and investor publications. I did not create or alter any of them." (Id. at ¶ 11.)

The Court finds that Plaintiff did not carry his burden establishing excusable neglect for failing to offer evidence earlier. Additionally, the evidence Plaintiff now offers is insufficient and inadmissible. Accordingly, the Court denies the instant motion.

Conclusion

Based on the foregoing,
Plaintiff's motion to vacate the Court's Order granting Defendant's motion to
quash service is DENIED. The Court reaffirms dismissal of the instant action.

Defendant is
ordered to provide notice of this Order.

DATED: August 7, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court